

KALE REALTY

# "DON'T WRITE THAT DOWN" IS EXPENSIVE ADVICE.

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Illinois spells out exactly what a seller owes a buyer,  
and what it costs when that gets skipped.

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**ONE STATE FORM.  
TWENTY-FOUR  
QUESTIONS. NO  
SKIPPING ONE.**

Every Illinois home sale runs on the same mandatory disclosure form, and the seller's duty to update it does not end the day it gets signed.

## THE BASEMENT STORY IS NOT RARE. THE LAWSUIT IS NOT EITHER.

Illinois' Residential Real Property Disclosure Act (765 ILCS 77) requires the seller to complete a 24-item disclosure form and keep it current under Section 30 until closing, not just at listing. Section 55 sets the cost of skipping it: a seller who knowingly discloses false information, or knowingly violates the Act, "shall be liable in the amount of actual damages and court costs," and the court can add the buyer's attorney's fees on top. The agent who tells a seller to paper over a known defect is not saving them an awkward line on a form. They're handing them a bigger bill with a judge's signature on it.

# WHAT TO DO INSTEAD, BEFORE THE DISCLOSURE FORM GOES OUT:

- 1 Ask the seller one question first.**  
"What would you want to know if you were buying this
- 2 house?" Write down whatever they pause on before answering.**
- 3 Put it on the form, not around it.**  
The 24-item Illinois form has a line for material
- 4 defects. Use it instead of steering the seller toward a repaint and a maybe.**
- 5 Treat the form as a living document, not a closing-day formality.**  
The duty to supplement
- 6 runs until closing. Something that changes after listing still has to go back on the form.**

## THE TAKEAWAY

**ONE HONEST  
QUESTION COSTS  
THIRTY SECONDS.  
THE LAWSUIT  
COSTS A LOT MORE  
THAN THAT.**

Ask it before the form goes out, not after the buyer's basement floods.